



GLOBAL MARKETS IN CLEAR VIEW

3rd Quarter 2009
Earnings Presentation
November 3, 2009

Forward-Looking Statement

Forward-Looking Statements

This presentation may contain “forward-looking statements” made pursuant to the safe harbor provisions of the Private Securities Litigation Reform Act of 1995. Statements regarding our business that are not historical facts are forward-looking statements that involve risks, uncertainties and assumptions that are difficult to predict. These statements are not guarantees of future performance and actual outcomes and results may differ materially from what is expressed or implied in any forward-looking statement. For a discussion of certain risks and uncertainties that could cause actual results to differ from those contained in the forward-looking statements see our filings with the Securities and Exchange Commission (the “SEC”), including, but not limited to, the “Risk Factors” in our Annual Report on Form 10-K for the year ended December 31, 2008, as filed with the SEC on February 11, 2009. SEC filings are also available in the Investors & Media section of our website. All forward-looking statements in this presentation are based on information known to us on the date hereof, and we undertake no obligation to publicly update any forward-looking statements.

GAAP and Non-GAAP Results

This presentation includes non-GAAP measures that exclude certain charges the company considers non-operating. We believe that the presentation of these measures provides investors with greater transparency and supplemental data relating to our financial condition and results of operations. These non-GAAP measures should be considered in context with our GAAP results. A reconciliation of Adjusted Net Income and Adjusted Earnings Per Common Share to the equivalent GAAP measure and an explanation of why we deem these non-GAAP measures meaningful appears in our earnings press release dated November 3, 2009 and in the appendix to this presentation. The reconciliation of Adjusted EBITDA to the equivalent GAAP results appears in the appendix to this presentation. Our earnings press releases and this presentation are available in the Investors & Media section of our website at www.theice.com. Our earnings press release is also available in our Current Report on Form 8-K filed with the SEC on November 3, 2009.

Earnings Conference Call - 3Q09

Jeffrey C. Sprecher

Chairman and Chief Executive Officer

Scott A. Hill

Senior Vice President, Chief Financial Officer

Charles A. Vice

President, Chief Operating Officer

Kelly L. Loeffler, CFA

*Vice President, Investor Relations and
Corporate Communications*

Sarah M. Stashak

Director, Investor and Public Relations

ICE Financial Highlights – 3Q09

SLIDE 4

In millions, except per share amounts

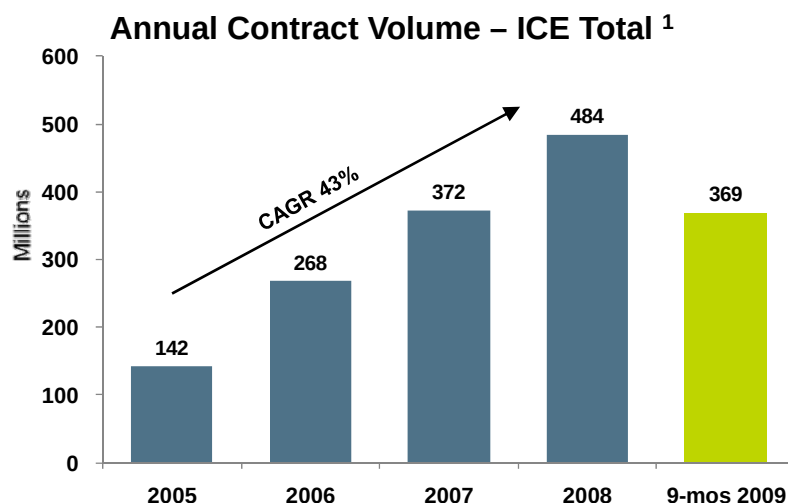
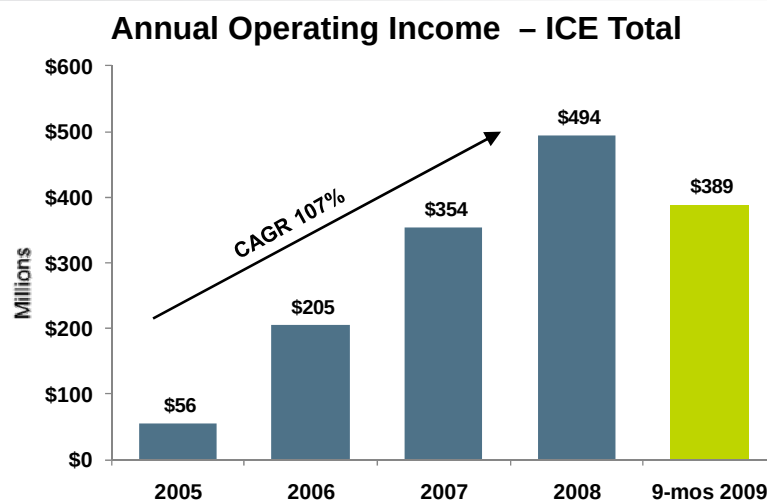
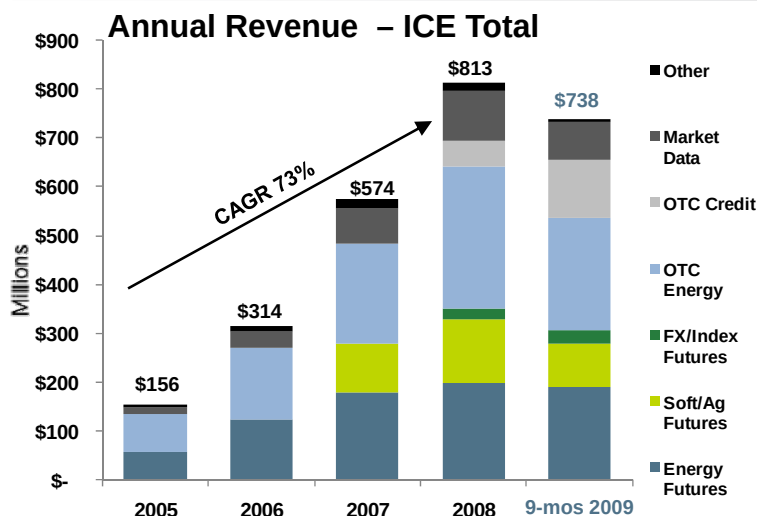
INCOME STATEMENT	3Q09	3Q08	Change yty
Total Revenues	\$256	\$201	27%
Total Expenses	\$116	\$82	41%
Operating Income	\$140	\$119	17%
Operating Margin	55%	59%	(4) points
Tax Rate	36.8%	36.6%	0 points
Net Income	\$87	\$75	16%
EPS (Diluted)	\$1.18	\$1.04	13%
CASH METRICS	3Q09	3Q08	Change yty
Adjusted EBITDA ¹	\$154	\$116	33%
Operating Cash Flow	\$120	\$108	11%
Cap Ex & Cap Software	\$10	\$15	-30%

(1) This is a non-GAAP measure. Please see slide 16 of this presentation for a reconciliation to the equivalent GAAP measure.

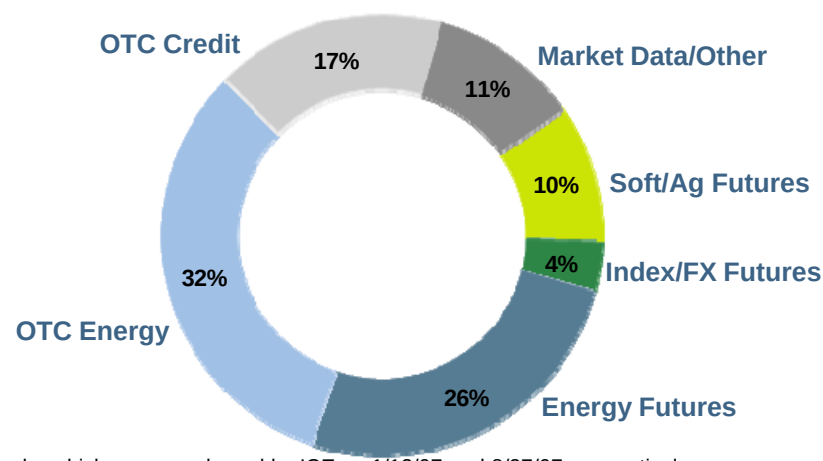
- Record consolidated revenues & strong operating income
- Record transaction revenues
 - Futures: +28% yty
 - OTC: +39% yty
- 3Q futures & OTC volume 136MM contracts; record quarterly futures volume
 - Record ICE Futures Europe ADV
 - Record futures open interest
 - OTC Energy ADC: \$1.25 MM
- Market data stable at \$25 MM
- Operating margin 55%
 - Third sequential increase
 - 65% non-CDS operating margin
- Second-highest net income in ICE history
- Record adjusted EBITDA and operating cash flow

Track Record of Growth & Diversification

SLIDE 5



ICE's Diverse Product Offering – Revenue 3Q09

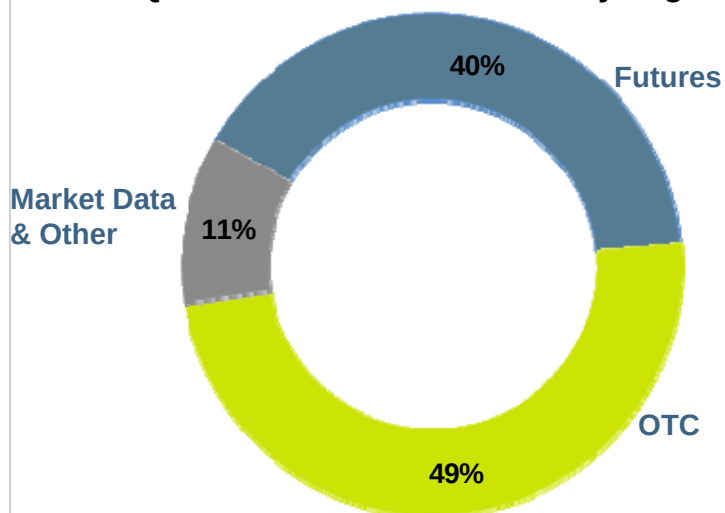


(1) Volumes include pro-forma 2007 data for both ICE Futures U.S. and ICE Futures Canada, which were purchased by ICE on 1/12/07 and 8/27/07, respectively.

Revenue & Expense Detail – 3Q09

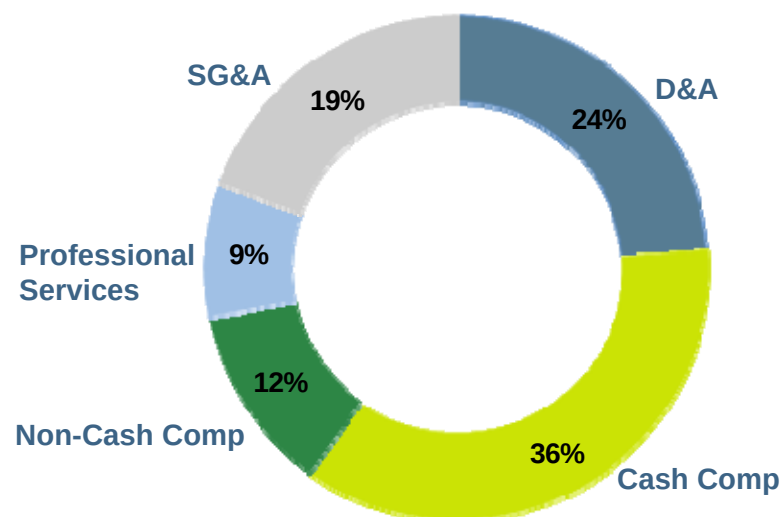
SLIDE 6

3Q09 Consolidated Revenues by Segment



(In millions)	3Q09	3Q08	yty%
OTC Energy	\$81.8	\$73.1	12%
OTC Credit	\$43.2	\$16.6	n/a
OTC Total	\$125.0	\$89.6	39%
Futures	\$103.8	\$81.3	28%
Transaction & Clearing Fee Rev.	\$228.9	\$171.0	34%
Market Data	\$24.9	\$25.8	-3%
Other	\$2.5	\$4.7	-47%
Total Revenue	\$256.3	\$201.4	27%

3Q09 Consolidated Expenses

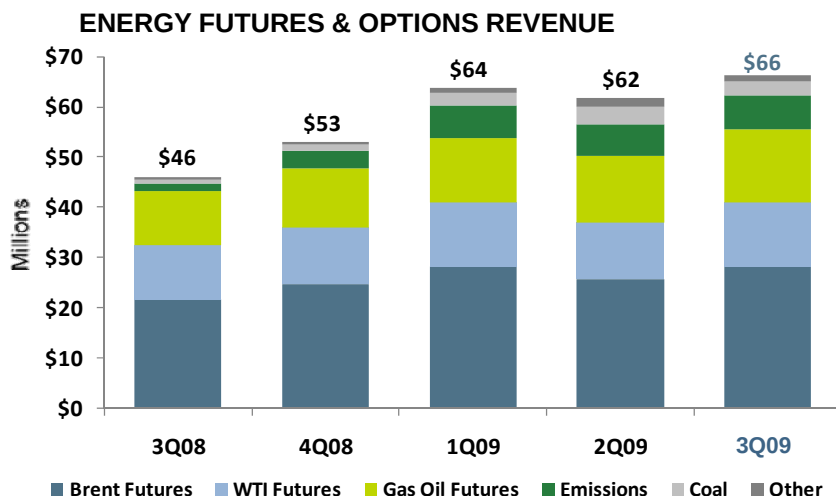


(In millions)	3Q09	3Q08	yty%
Compensation & Benefits	\$55.9	\$41.2	36%
Professional Services	\$9.9	\$9.1	9%
SG&A	\$22.6	\$17.6	28%
Depreciation & Amortization	\$27.9	\$14.4	94%
Total Expenses	\$116.3	\$82.3	41%

NOTE: Figures may not foot due to rounding. Please see press release dated November 3, 2009 for more detail, available on www.theice.com.

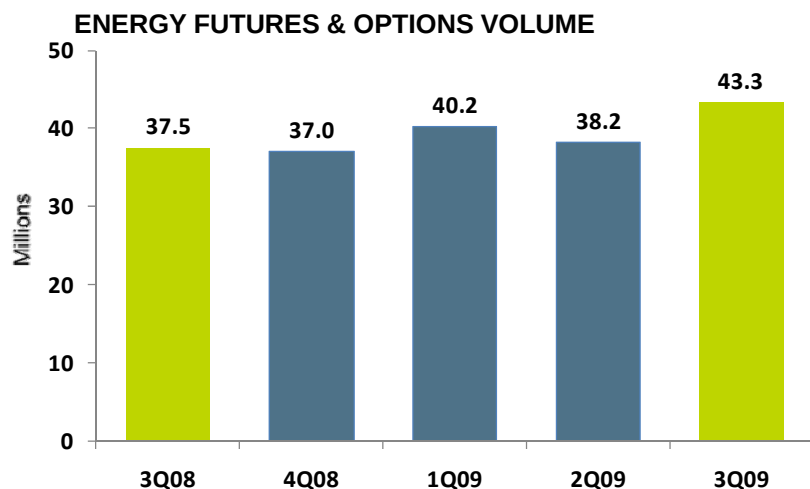
ICE Energy Futures – 3Q09

SLIDE 7



- Record \$66 MM in transaction revenue; + 44% yty
- Record ADV of 676K contracts, up 19% yty; strength in Brent, Gasoil, UK Natural Gas & Power
- Open interest remains strong; +33% since 12/31/08
- Rate per Contract for ICE Futures Europe

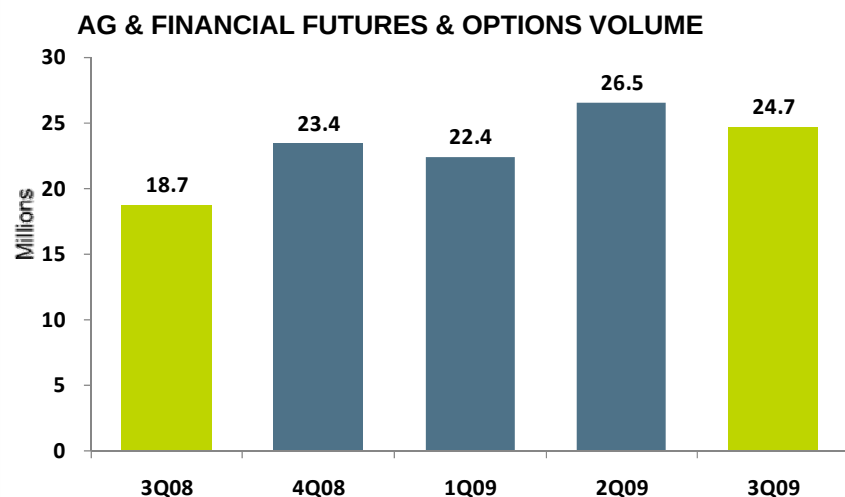
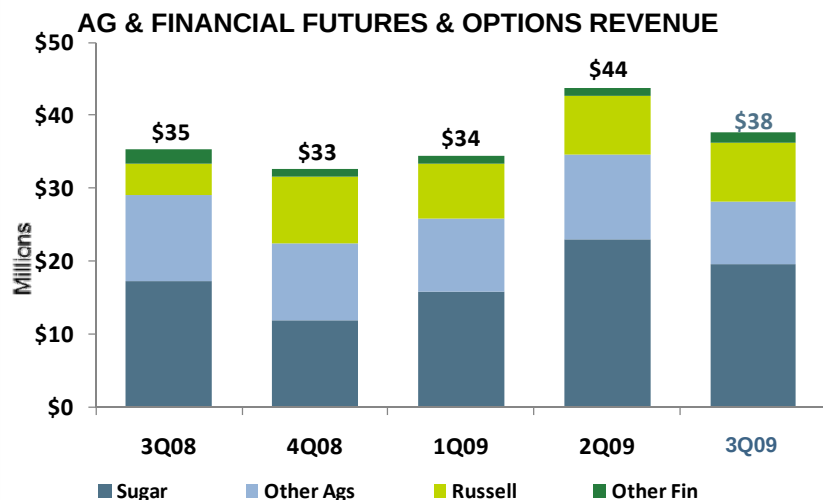
	3Q09	2Q09	3Q08
Rate per Contract	\$1.53	\$1.61	\$1.22
- October ADV + 12% yty; RPC \$1.52



(In 000)	3Q09	3Q08	yty%
Total Volume	43,265	37,538	15%
Brent ADV	301	250	20%
WTI ADV	190	184	3%
Gas Oil ADV	150	115	30%
Other ADV	35	20	77%
Total ADV	676	569	19%

ICE Agricultural & Financial Futures – 3Q09

SLIDE 8



- \$38 MM in transaction revenue; + 7% yty
- Quarterly ADV +33% yty; 3Q09 Sugar ADV +28% yty
- Open interest +21% for ags since 12/31/08
- Rate per Contract for ICE Futures U.S.

Agricultural			Financial		
3Q09	2Q09	3Q08	3Q09	2Q09	3Q08
\$2.08	\$2.16	\$2.22	\$0.89	\$0.84	n/a

- October ADV - 15% yty; RPC \$2.05 (ag) & \$0.86 (fin)

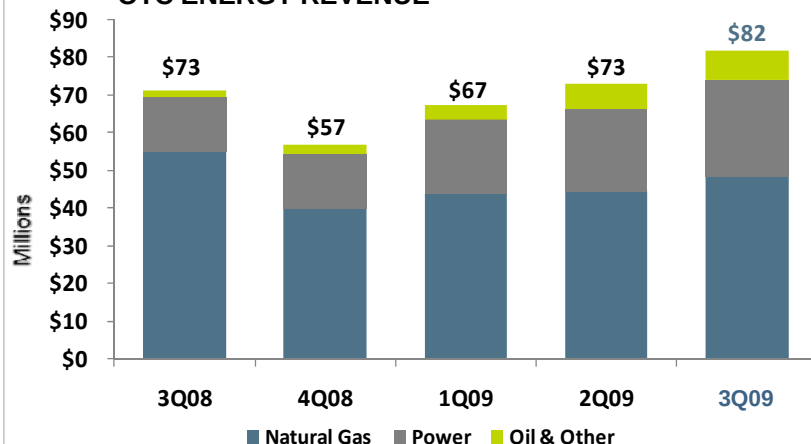
(In 000)	3Q09	3Q08	yty%
Total Volume	24,720	18,702	32%
Sugar ADV	159	125	28%
Cotton ADV	15	29	-46%
Russell ADV ¹	153	64	139%
Other ADV	59	72	-19%
Total ADV	386	290	33%

(1) The transition of the Russell 2000 mini futures and options contracts to exclusive trading on ICE occurred in September 2008.

ICE Energy & Credit OTC – 3Q09

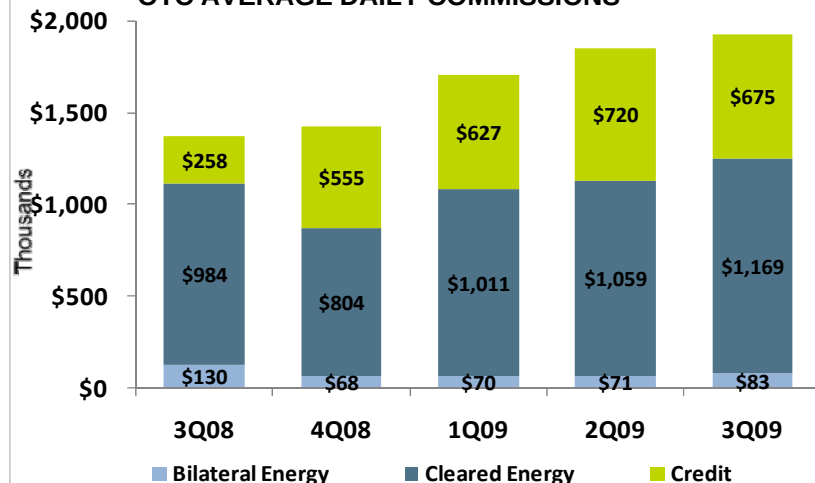
SLIDE 9

OTC ENERGY REVENUE



- Record \$125 MM in transaction revenue; +39% yty
 - Record quarterly revenues in power and oil
- Energy ADC of \$1.25 MM; 96% of energy OTC contracts cleared
- OTC Energy ADC: \$1.4 MM in October
- \$43 MM in revenues from CDS execution, processing & clearing in 3Q09
 - 43% of Creditex revenues from electronic processing
- Operating margin continues to improve due to operational efficiencies at Creditex

OTC AVERAGE DAILY COMMISSIONS



(In 000)	3Q09	3Q08	yty%
Energy Contracts			
Traded	67,623	65,799	3%
Cleared	65,197	60,276	8%
% Cleared	96%	92%	
Energy ADC	\$1,252	\$1,114	12%
OTC Transaction & Clearing Fees			
Natural Gas	\$48,602	\$55,171	-12%
Power	\$25,605	\$14,363	78%
Credit	\$43,220	\$16,561	n/a
Other	\$7,599	\$3,543	115%
Total OTC Fees	\$125,027	\$89,638	39%

Business Drivers

SLIDE 10

Clearing Focus

On January 1, 2007 all ICE clearing operations were outsourced – today ICE operates 5 clearing houses, including the largest capitalized default fund globally

- Demonstrated ability to leverage benefits of clearing and deliver services through acquisitions as well as internal builds
- Policy makers enacting reforms that favor ICE's clearing models, as well as execution capabilities in OTC & futures
- Market structure reform being adopted by industry & participants globally ahead of regulatory and legislative mandates
- Successful entry into new markets due to strategic approach, strong domain knowledge and tested models

Global Positioning in High-Growth Segments

Core business driven predominantly by commercial participation, improving economic fundamentals and global reach in commodities

- Energy products serve as important hedging tools for global oil companies, industrials, refiners and other commercial firms; products such as Gasoil and Brent are increasingly important products that relate to Asia and Europe
- Open interest improving for agricultural products, highly levered to economic and credit market recoveries
- Global footprint through universal products and distribution to U.S., Europe, and Asia, as well as niche products for each region

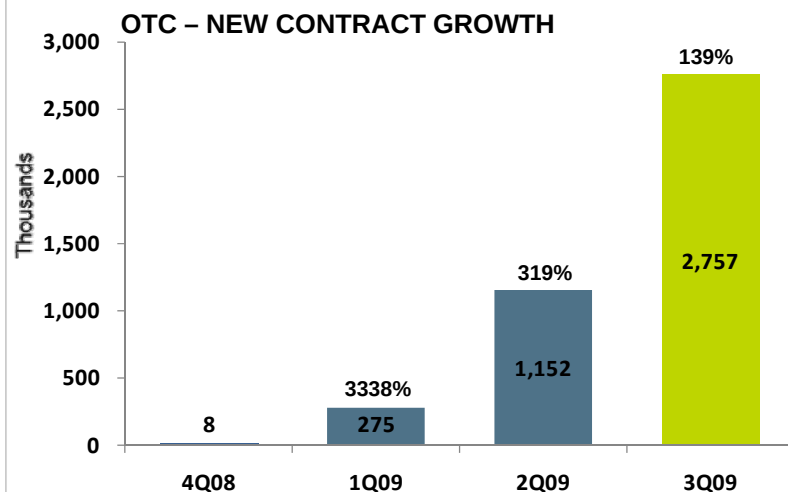
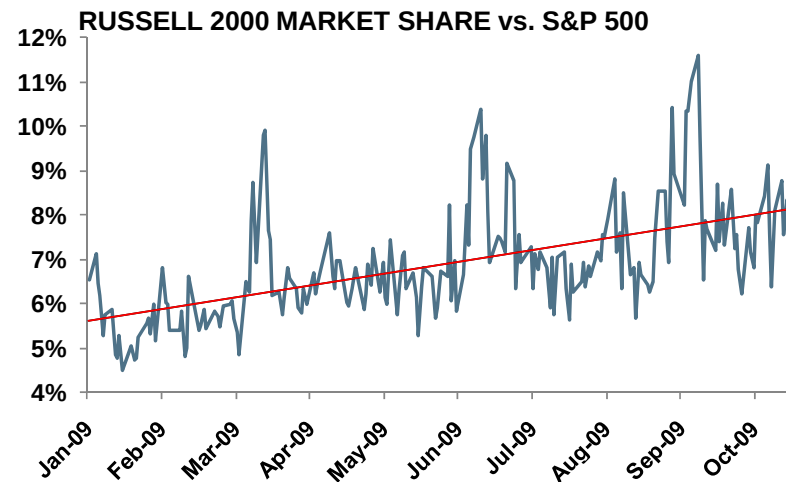
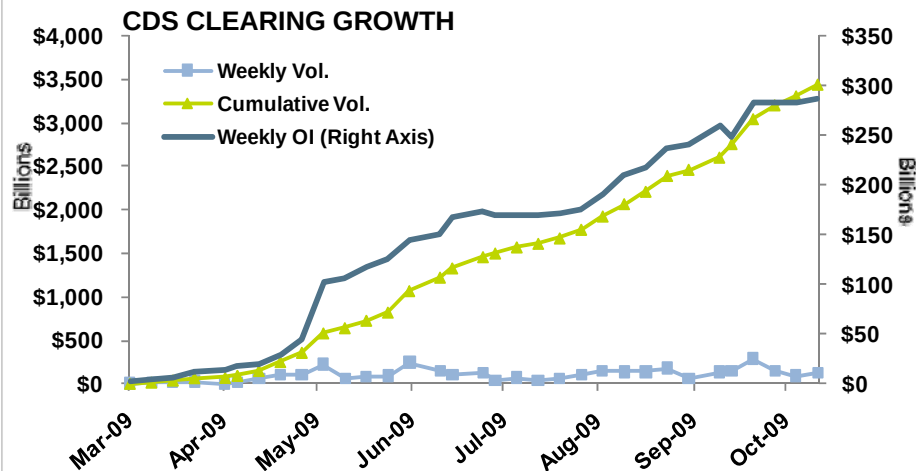
Innovation and Execution

Strong performance on new initiatives

- Leadership in OTC clearing across energy and CDS markets
- New product launches have produced meaningful revenue and profit contributions
- Leading-edge technology with cost-efficient capital expenditures, producing fastest matching engine in futures
- Ability to examine M&A opportunities creatively to access new business lines, technology and markets

Positioned for Growth

SLIDE 11



OPEN INTEREST GROWTH - 10/30/09 vs. 12/31/08

Product	Open Interest Growth
Agricultural	+ 21%
Brent	+ 20%
Gasoil	+ 44%
OTC Energy ¹	+ 38%
European/UK Utilities ²	+ 132%

(1) OTC Energy is based on 9/30/09 open interest

(2) Emissions, Coal, UK Nat Gas & Power

APPENDIX

ICE Summary Financials – 9-months 2009

SLIDE 13

In millions, except per share amounts

INCOME STATEMENT	9-mos 2009	9-mos 2008	Change yty
Total Revenues	\$738	\$606	22%
Total Expenses	\$349	\$210	67%
Operating Income	\$389	\$396	-2%
Operating Margin	53%	65%	(12) points
Tax Rate	36.5%	35.7%	1 point
GAAP Net Income	\$231	\$252	-8%
Adjusted Net Income ¹	\$251	\$252	-1%
GAAP EPS (Diluted)	\$3.13	\$3.51	-11%
Adjusted EPS (Diluted) ¹	\$3.39	\$3.51	-3%
CASH METRICS	9-mos 2009	9-mos 2008	Change yty
Adjusted EBITDA ²	\$433	\$395	10%
Operating Cash Flow	\$291	\$299	-3%
Cap Ex & Cap Software	\$29	\$30	-4%

- Record revenues \$738 MM

- Revenue change yty:

- o Futures: +16%
- o OTC: +40%
- o Data: +1%

- Volume change yty:

- o Ag/Financial Futures: +21%
- o Energy Futures: +5%
- o OTC Energy: -14%

- OTC Energy ADC:

- o \$1.16 MM 9-mos
- o \$1.25 MM 3Q09
- o \$1.4 MM October 2009

- Strong adj. EBITDA & operating cash flow

- Successful launch of CDS index clearing in U.S. and Europe

- Buy-side and single name CDS clearing in development for 4Q09 launch

(1) These are non-GAAP measures. Please see slide 15 of this presentation for a reconciliation to the equivalent GAAP measure.

(2) This is a non-GAAP measure. Please see slide 16 of this presentation for a reconciliation to the equivalent GAAP measure.

ICE Summary Balance Sheet

SLIDE 14

In millions

BALANCE SHEET	9/30/09	12/31/08	CHANGE
Assets			
Cash & ST Investments	\$394	\$287	\$107
Other Current Assets	16,701	12,266	4,435
Current Assets	17,095	12,553	4,542
PPE (net)	87	89	(2)
Other Assets	2,380	2,318	62
Total Assets	\$19,562	\$14,960	\$4,602
Liabilities & Equity			
Current Liabilities	\$16,687	\$12,312	\$4,375
Long Term Debt	234	333	(99)
Other Liabilities	303	302	1
Total Liabilities	17,224	12,946	4,278
Other	-	1	n/a
Total Shareholders Equity	2,337	2,012	325
Total Liabilities & Shareholders Equity	\$19,562	\$14,960	\$4,602

- **Strong operating cash flow**
 - \$120 MM in 3Q09
 - \$291 MM through 9/30/09
- **Debt to trailing twelve-month EBITDA down to 0.6x**
- **Cash and unrestricted investments \$424 MM; \$330 MM debt outstanding**
- **9-mos capital expenditures:**
 - CapEx of \$14 MM
 - Capitalized software of \$15 MM
- **Credit facilities restructured in 2Q09**
 - Net \$200 MM increase of borrowing capacity to \$775 MM
- **ICE Board authorization in place for \$200 million share repurchase; expires February 2010**

Note: Figures may not foot due to rounding. Please see press release, dated November 3, 2009 for more detail available on www.theice.com

Non-GAAP Adjusted Net Income & EPS – 9-mos 2009

SLIDE 15

In thousands, except per share amounts

	9 Months Ended 9/30/09
Net income attributable to ICE	\$231,734
Add: NCDEX impairment charge	9,276
Add: Transaction costs incurred from TCC acquisition	5,609
Add: 1Q09 employee termination costs for Creditex acquisition	2,902
Add: Costs incurred to vacate office space	2,980
Less: Income tax expense for non-recurring expenses	(1,774)
Adjusted net income	<u>\$250,727</u>
Earnings per share attributable to ICE common shareholders:	
Basic	<u>\$3.18</u>
Diluted	<u>\$3.13</u>
Non-GAAP adjusted earnings per share attributable to ICE	
Adjusted basic	<u>\$3.44</u>
Adjusted diluted	<u>\$3.39</u>
Weighted average common shares outstanding:	
Basic	<u>72,887</u>
Diluted	<u>73,949</u>

Non-GAAP Adjusted EBITDA

SLIDE 16

In thousands

	3 Months Ended <u>9/30/2009</u>	3 Months Ended <u>9/30/2008</u>	9 Months Ended <u>9/30/2009</u>	9 Months Ended <u>9/30/2008</u>
Net income	\$86,882	\$74,963	\$231,162	\$252,117
Plus income tax expense	50,524	43,319	133,142	140,223
Less interest and investment income	(298)	(3,297)	(1,252)	(9,141)
Plus interest expense	4,374	4,438	16,534	13,614
Plus depreciation and amortization expense	27,868	14,401	82,750	36,191
Non-GAAP EBITDA	169,350	133,824	462,336	433,004
 (Less) plus other (income) expense, net	 (1,493)	 (281)	 9,163	 (606)
Less capital expenditures	(4,730)	(10,765)	(13,809)	(18,656)
Less capitalized software development costs	(5,413)	(3,786)	(14,756)	(10,963)
Less Russell payments	(3,600)	(3,000)	(9,600)	(8,000)
Non-GAAP Adjusted EBITDA	\$154,114	\$115,992	\$433,334	\$394,779